

Remuneration, Facilities and Other Conditions of Service of Judges of High Court and District Court Act, 2017

Document type: act

Source: Nepal Law Commission / Ministry of Law, Justice and Parliamentary Affairs

Chunks merged: 17

Act Relating to Remuneration, Facilities and Other Conditions of Service of Judges of High Courts and District Courts, 2074

Certification Date and Publication Date

2074.06.29

Act No. 29 of the year 2074

An Act made to provide for remuneration, facilities and other conditions of service of Judges of High Courts and District Courts

Preamble: Whereas, it is desirable to amend and consolidate the prevailing law relating to remuneration, facilities and other conditions of service of Judges of High Courts and District Courts,

The Legislature-Parliament, pursuant to clause (1) of Article 216 of the Constitution of Nepal, has enacted this Act. 1. Short Title and Commencement: (1) This Act may be cited as the "Act Relating to Remuneration, Facilities and Other Conditions of Service of Judges of High Courts and District Courts, 2074."

(2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Judge of a High Court" means the Chief Judge and Judge of a High Court appointed pursuant to Article 140 of the Constitution of Nepal.

(b) "Judge of a District Court" means the Judge of a District Court appointed pursuant to Article 149 of the Constitution of Nepal.

(c) "Judge" means the Judge of a High Court or a District Court.

(d) "Family" means the spouse, son, unmarried daughter, adopted son, unmarried adopted daughter, or father, mother or step-mother living with the Judge and whom the Judge himself/herself is required to support; and in the case of a male Judge or an unmarried female Judge, the term also includes his/her grandparents, and in the case of a married female Judge, the term also includes her father-in-law and mother-in-law. 3. Remuneration: The Chief Judge of a High Court, other Judges of a High Court and Judge of a District Court shall receive the remuneration and allowance as specified in Schedule-1. 4. Provident Fund: Ten percent of the monthly remuneration of a Judge shall be deducted, and the Government of Nepal shall add an equal amount (one hundred percent) to such deducted amount and deposit it in the Employees' Provident Fund. 5. Housing Facility: (1) A Judge who does not own a house at the place where the High Court or District Court is located shall be provided with a government house for residence by the Government of Nepal.

In case such a house is not provided, the Judge shall be given an amount as housing facility as specified in

Schedule-1. (2) A Judge residing in his/her own house shall be given an amount for house cleaning and maintenance as specified in Schedule-1. (3) The housing facility provided pursuant to sub-section (1) may be utilized by the Judge for up to seven days from the date of expiry of his/her term. 6. Electricity, Water Supply and Telephone Facility: (1) The concerned court shall arrange for the installation of an internet connection and one telephone line, a drinking water tap, and electricity at the Judge's residence. (2) The expenses incurred for the installation of the telephone, drinking water tap and electricity pursuant to sub-section (1) shall be borne by the concerned court, and such telephone, tap and electricity shall remain under the ownership of the concerned court. (3) The Judge shall be given an amount as specified in Schedule-1 for the charges of electricity, drinking water tap and telephone installed at his/her residence. (4) A Judge residing in his/her own house shall also receive the facility pursuant to sub-section (3). 7.

Vehicle, Fuel and Vehicle Maintenance Facility: (1) A Judge shall be provided with one motor vehicle with a driver, and fuel and lubricant as specified in Schedule-1. (2) A Judge who uses his/her private motor vehicle instead of the motor vehicle provided pursuant to sub-section (1) shall be provided with an amount equal to the initial salary scale of a light vehicle driver of the Government of Nepal for the driver, and the fuel and lubricant as specified in sub-section (1). (3) The concerned court shall arrange for the regular maintenance and upkeep of the government motor vehicle provided pursuant to sub-section (1). (4) Bills or vouchers for the fuel and driver's remuneration obtained pursuant to sub-section (1) or (2) need not be submitted. (5) The government motor vehicle provided to a Judge pursuant to sub-section (1) shall be used by such Judge for up to twelve years from the date of its purchase, even when such Judge is transferred or appointed to another court. (6) The facility pursuant to this section shall be provided to the Judge for up to seven days from the date of expiry of his/her term. (7) If a Judge, upon retirement, wishes to purchase and take away the vehicle he/she has been using pursuant to sub-section (5), such vehicle shall be transferred to him/her upon payment of its book value. (8) While determining the book value of the vehicle pursuant to sub-section (7), it shall not be less than ten percent of the purchase price of such vehicle. (9) A Judge wishing to purchase and take away the vehicle he/she has been using upon retirement pursuant to sub-section (7) shall provide written notice thereof to the Supreme Court through the concerned court at least six months prior to the date of retirement. Provided that, in the case of a Judge serving at the time of commencement of this Act whose retirement is less than six months away, providing such notice before retirement shall not be an impediment. 8.

Daily and Travel Allowance: (1) A Judge, while proceeding to the place of his/her appointment or transfer or deputation, or while traveling within Nepal on official business, shall receive daily and travel expenses as per the prevailing law relating to travel expenses. (2) A Judge, while traveling to a foreign country on official business upon the invitation of a foreign country, the United Nations or its specialized agencies, or the South Asian Association for Regional Cooperation (SAARC), or as per a decision of the Government of Nepal, shall, if he/she has to make his/her own arrangements for food and lodging, receive daily and travel expenses as per the prevailing law relating to travel expenses. (3) A Judge, while traveling to a foreign country, institution or agency as a guest of such country, institution or agency upon the invitation of a foreign country, the United Nations or its specialized agencies, or the South Asian Association for Regional Cooperation (SAARC), where only lodging arrangements are made, shall receive, as daily and travel allowance, half of the amount receivable under sub-section (1) for the period of stay in such country. (4) While a Judge travels abroad pursuant to sub-section (2) or (3), if the host organization or the concerned foreign country provides hospitality covering food and lodging but does not provide pocket money, the Judge shall receive, as pocket expenses, only one-third of the amount receivable under sub-section (2). (5) Notwithstanding anything contained in sub-sections (2), (3) and (4), if the host organization or the concerned foreign country provides

daily and travel allowance during the foreign visit, the daily and travel allowance or pocket expenses under this section shall not be provided. (6) Notwithstanding anything contained elsewhere in this Act, a Judge shall not travel abroad upon the invitation of domestic or foreign non-governmental organizations. (7) If a Judge is separated from service for any reason and has to return home, the Judge and his/her family members shall receive daily and travel allowance as per this Act, and such allowance shall be paid by the court from which the Judge's tenure ended. (8) If a Judge dies, the family members of such Judge may receive the daily and travel allowance receivable under sub-section (7) from the court where the deceased Judge was serving.

Provided that family members residing elsewhere than the court headquarters shall not be given daily and travel allowance under this sub-section.

(9) A Judge who has completed three years at the same court without taking any leave except casual leave, festival leave and sick leave shall, when proceeding to his/her home on home leave and returning from home, receive daily and travel allowance at half the rate receivable under this Act. Provided that family members of such Judge shall not be given daily and travel allowance under this sub-section.

(10) A Judge who is being transferred may take an advance of the amount of daily and travel allowance receivable under this Act from the court where he/she is currently serving, to be settled at the court to which he/she is transferred.

(11) When a newly appointed Judge or a Judge transferred from one court to another sends his/her family back home from his/her current place of service, or brings them to the place of his/her new appointment or transfer, the family members shall be given daily and travel allowance once at the following rates:-

(a) For members aged ten years or above, at the rate receivable by the Judge.

(b) For members below ten years, half of the allowance receivable by the Judge. 9. Remote Area Allowance: A Judge serving in a High Court or District Court located in a remote area shall receive, in addition to remuneration, a remote area allowance at the same rate as receivable by civil servants. 10. Administrative Allowance: The most senior Judge acting as the head of a District Court shall be given an amount as administrative allowance as specified in Schedule-1. 11. Clothing Allowance: A Judge shall be given an amount as clothing allowance at the end of the month of Chaitra each year, as specified in Schedule-1. 12. Festival Expenses: (1) A Judge shall receive an amount equal to one month's remuneration drawn by him/her as festival expenses each year for the festival celebrated according to his/her religion, culture and tradition.

(2) The amount under sub-section (1) may be received by the Judge once in a fiscal year on the occasion of the main festival celebrated according to his/her religion, culture and tradition. 13. Permission to Recruit Assistant: A Judge may, for the duration of his/her tenure in office, recruit one office assistant equivalent to the first level (non-gazetted) for residential work, and the Government of Nepal shall bear the remuneration of such assistant. 14.

Pension and Gratuity: (1) If a Judge of a High Court has completed twelve years of service in that post and a Judge of a District Court has completed twenty years of service, such Judge shall, after retirement, receive a monthly pension equal to fifty percent of his/her monthly remuneration. (2) A Judge who completes more than twelve years of service in the post of Judge of a High Court shall receive, in addition to the pension receivable under sub-section (1), an additional pension at the rate of zero point five percent of his/her monthly remuneration for each year of service so rendered. (3) Notwithstanding anything contained in sub-section (1), if a Judge who was appointed to the post of Judge from the service of the Government of Nepal or from an institution owned by the Government of Nepal that has a provision for pension, retires after

serving in such government service and the post of Judge, and if the total period of service previously rendered and the service period worked in the post of Judge of a District Court or Judge of a High Court or both amounts to twenty years or more, such Judge may choose either the monthly pension under sub-section (1) or the monthly pension calculated as follows:- Total service period x Monthly remuneration (4) A Judge who has not completed the service period required to receive pension under sub-section (1) shall receive a lump sum gratuity equal to the amount obtained by multiplying the total years of service rendered by the amount of one month's remuneration drawn at the time of retirement. (5) A person already receiving a pension shall not receive a gratuity for the service rendered as a Judge of a High Court or Judge of a District Court. (6) The amount of gratuity receivable by a Judge under this section shall not exceed twelve months' remuneration of such Judge. (7) If a person already receiving a pension for service rendered to the Government of Nepal or an institution owned by the Government of Nepal that has a provision for pension is appointed as a Judge and becomes eligible for pension under this Act as well, such person may choose either the pension he/she was previously receiving or the pension receivable under this Act. (8) When the remuneration of Judges is increased, the pension amount of a Judge who is receiving a pension shall also be increased at the rate of sixty-six percent of the percentage increase in the remuneration amount.

Provided that if, while increasing the pension amount in this manner, the amount falls below half of the remuneration receivable by the Judge, the pension shall be increased to make it equal to half of such remuneration.

(9) For the purposes of sub-sections (1), (2), (3) and (4), the period served in the post of Judge of an Appellate Court prior to the establishment of the High Court shall also be deemed to be service in the post of Judge of a High Court.

(10) Notwithstanding anything contained elsewhere in this section, a Judge who has been removed from office pursuant to clause (c) or (e) of sub-section (1) of Article 142 or clause (c) or (e) of sub-section (6) of Article 149 of the Constitution of Nepal shall not receive pension or gratuity under this Act. 15. Family Pension and Gratuity: (1) In the following circumstances, for the following periods, the pension under section 14 shall be paid to a person chosen by the Judge from among his/her family members, and if such chosen person has died or the Judge has not chosen anyone, to the nearest heir among his/her family members:-

(a) If the Judge dies while in office, from the date of death for seven years,

(b) If the Judge dies within seven years of starting to receive pension under section 14, for the remaining period of those seven years.

(2) If a Judge dies while in office and is entitled only to gratuity and not to pension under section 14, the amount of such gratuity shall be received by the person specified in sub-section (1) among his/her family members.

(3) After the period for receiving family pension under sub-section (1) has elapsed, the widowed wife or widower husband of the Judge shall receive half of such pension for life. Provided that a person receiving pension shall not receive double pension. 16. Disability Allowance: (1) If a Judge becomes disabled, being maimed or injured in an accident in the course of performing official duties, and becomes incapable of performing the work of his/her post, such Judge shall receive, for life, in addition to the pension receivable under sub-section (2), a disability allowance as mentioned in sub-section (5).

(2) A Judge disabled under sub-section (1) shall, if he/she has completed the service period required for receiving pension under section 14, receive pension accordingly; and if he/she has not completed such

period, receive pension calculated proportionately by deducting for the shortfall period.

Provided that, while making such deduction, it shall not exceed one-third of the minimum pension receivable had the Judge completed the service period entitling him/her to pension.

(3) A Judge disabled under sub-section (1) may be given a lump sum amount up to ten thousand rupees as financial assistance.

(4) A Judge disabled under sub-section (1) shall receive one hundred percent of the treatment expenses incurred for the treatment of the injury.

(5) The additional monthly disability allowance receivable in addition to the pension under sub-section (2) for disability shall be as follows:

Percentage of Disability Allowance Percentage

100 Rs. 125.?

90 Rs. 112.50

80 Rs. 100.?

70 Rs. 87.50

60 Rs. 75.?

50 Rs. 75.?

40 Rs. 50.?

30 Rs. 37.50

20 Rs. 25.?

Explanation:

(1) A person with less than twenty percent disability shall not be deemed to be disabled.

(2) A Judge who starts receiving disability allowance shall not receive the disability allowance under this section if he/she becomes capable of handling his/her work.

(6) If a Judge receiving disability allowance dies within seven years from the date of starting to receive such allowance, the disability allowance receivable for the remaining period of those seven years shall be given as a lump sum gratuity to the person specified in sub-section (1) of section 15. 17. Facility for Becoming Maimed: (1) If a Judge sustains an injury in the course of performing official duties and, even if he/she need not retire from service, his/her capacity is impaired due to such injury, such Judge may be given a lump sum financial assistance up to ten thousand rupees, considering the severity of the injury sustained.

(2) A Judge shall receive additional sick leave with full pay for the entire period required for the treatment of the injury under sub-section (1), without deducting from any accumulated leave.

(3) A Judge shall receive one hundred percent of the expenses incurred for the treatment of the injury under sub-section (2). The expenses so incurred for treatment shall not be deducted from the treatment expenses receivable by him/her under section 31.

(4) A Judge who intentionally or through his/her own gross negligence causes injury and becomes maimed shall not receive the facility under this Act. 18.

Extraordinary Family Pension and Gratuity: (1) If a Judge dies immediately in an accident in the course of performing official duties, or dies subsequently without recovering from the effects thereof, the widowed wife

or widower husband of the Judge shall be given a separate lifelong monthly family allowance and an additional lump sum gratuity as follows: Monthly Rate of Family Allowance Lump Sum Gratuity (a) Judge of a High Court Two hundred fifty rupees Eight thousand seven hundred fifty rupees (b) Judge of a District Court One hundred ninety-five rupees Six thousand five hundred rupees (2) For the purpose of granting the lifelong monthly family allowance and additional gratuity under sub-section (1), the widowed wife or widower husband of the Judge shall be recognized only in the following circumstances: (a) The marital relationship with the Judge must have subsisted before the Judge's death, (b) The spouse must have been living together with the Judge at the time of the Judge's death. (3) If there is no widowed wife, or if she was separated from the husband before his death, or if the widowed wife has remarried, the lump sum gratuity under sub-section (1) may be given equally in a lump sum to the children born from the widowed wife. Provided that if there are children below the age of eighteen years, for their maintenance, a family allowance may also be provided at a reasonable rate, not exceeding two-thirds of the amount of family allowance receivable by the widowed wife, for such period as the Government of Nepal deems appropriate. (4) If the deceased Judge leaves no widowed wife, widower husband or children, and there is a dependent mother, father, or both or one of the parents-in-law, for their maintenance, a family allowance may be provided at a reasonable rate, not exceeding two-thirds of the amount of family allowance receivable by the widowed wife or widower husband, for such period as the Government of Nepal deems appropriate. (5) If the deceased Judge leaves no widowed wife, children, mother, father, or parents-in-law, and there is a dependent brother or unmarried sister(s), for their maintenance, a family allowance may be provided to them equally at a reasonable rate, not exceeding two-thirds of the amount of family allowance receivable by the widowed wife or widower husband, for such period as the Government of Nepal deems appropriate. 19.

Educational Allowance or Children's Allowance: (1) If a Judge dies in an accident in the course of performing official duties, or becomes permanently incapacitated for work due to the same cause, each child of such deceased or disabled Judge shall be given an annual educational allowance at the rate of nine hundred rupees until reaching the age of eighteen years. Explanation: For the purpose of this section, "child" means the son or daughter of the deceased or disabled Judge. (2) A child of a Judge who died in the course of performing official duties, who has neither parent alive, shall be given, in addition to the educational allowance under sub-section (1), a children's allowance at the monthly rate of seventy-five rupees. (3) The allowance under sub-section (2) shall be received by the concerned child until the date of completing the age of twenty-one years or entering government service, whichever occurs earlier. (4) If a Judge dies in the course of performing official duties or becomes permanently disabled, the Judicial Council shall recommend to the Government of Nepal regarding the allowance or gratuity receivable by the Judge, his/her family or children. 20. Leave: (1) A Judge shall receive the following leaves: (a) Casual leave, (b) Festival leave, (c) Home leave, (d) Sick leave, (e) Bereavement leave, (f) Special leave, (g) Maternity leave, (h) Paternity leave. (2) A Judge of a District Court may, in addition to the leaves mentioned in sub-section (1), also receive study leave. 21. Casual and Festival Leave: (1) A Judge may take six days of casual leave with full pay and six days of festival leave each year. (2) Casual and festival leave of one year shall not be accumulated for the next year. (3) Casual and festival leave may be taken for half a day as well. 22. Home Leave: (1) A Judge shall receive home leave with full pay at the rate of one day for every eleven days of work performed.

Explanation: For the purpose of this section, "work performed" means days spent on casual leave, festival leave, and public holidays as well. (2) Home leave under sub-section (1) may be accumulated up to a maximum of one hundred fifty days. (3) A Judge who has accumulated more than one hundred twenty days of home leave may, in lieu of such excess accumulated home leave, receive, by the end of the same fiscal year, a lump sum amount calculated at the rate of the remuneration drawn by him/her, for up to a maximum

of thirty days of the home leave accumulated by the end of Chaitra of each year. (4) Even if a Judge is separated from service for any reason, he/she may receive a lump sum amount calculated at the rate of the remuneration drawn by him/her, for up to a maximum of one hundred twenty days of the home leave accumulated under sub-section (2). (5) A Judge, while going home on home leave, and while returning from home to the court after settling home leave, shall receive traveling time once a year at the rate of one day for eight kos of walking distance, and for motor, rail, or air travel, as many days as it actually takes. (6) If a Judge dies before receiving the accumulated home leave under sub-section (2) or the amount in lieu thereof, such amount shall be received in a lump sum by the person specified in sub-section (1) of section 15. (7) If any public holiday falls during the period of home leave taken by a Judge under this section, such public holiday shall not be added to the home leave. 23. Sick Leave: (1) A Judge shall receive twelve days of sick leave with pay each year. (2) If the sick leave under sub-section (1) is not taken, it shall accumulate. (3) A Judge shall, upon retirement from service, receive a lump sum amount in lieu of the sick leave accumulated under sub-section (2), calculated based on the monthly remuneration drawn by him/her at that time. (4) If a Judge contracts a serious or severe disease and submits a certificate from an authorized physician, he/she may receive, even if no sick leave remains, additional sick leave with pay for up to two months, and after exhausting such additional sick leave with pay, may receive sick leave without pay for up to an additional four months at a time, provided that the total in the entire service period does not exceed twelve months.

Provided that, while taking such additional sick leave with pay, for every two days of additional sick leave taken, one day shall be deducted from home leave.

(5) A Judge requesting sick leave for a period exceeding seven days must submit a certificate from an authorized physician. Provided that, in the case of the Chief Judge of a High Court, if the Chief Justice, and in the case of other Judges, if the Chief Judge of the High Court, is satisfied that it is generally not possible to submit such certificate, the leave may be approved without requiring the certificate, stating the reasons thereof.

(6) If a Judge dies before receiving the accumulated sick leave or the amount in lieu thereof, such amount shall be received in a lump sum by the person specified in sub-section (1) of section 15. 24. Bereavement Leave: A Judge who is required to observe mourning himself/herself shall receive bereavement leave with pay for a maximum of fifteen days according to his/her religion or culture. 25. Special Leave: (1) A Judge may, if special reasons arise, receive special leave for up to a maximum of one month at a time, and for a total of up to three months during the entire service period.

(2) A Judge on special leave under sub-section (1) shall receive half pay. 26. Maternity Leave: (1) A female Judge may take maternity leave for a total of ninety-eight days, covering before and after childbirth.

(2) A Judge who has taken maternity leave under sub-section (1) may, if she wishes, take additional maternity leave without pay for up to six months, without deducting from any other leave.

(3) The leave under sub-sections (1) and (2) shall be taken consecutively.

(4) The period of leave without pay under sub-section (2) shall be counted as service period.

(5) A Judge on maternity leave under sub-section (1) shall receive full pay.

(6) The record of maternity leave taken shall be maintained by the concerned court and information thereof shall be provided to the Judicial Council. 27.

Paternity Leave: (1) If the wife of a Judge is about to give birth, such Judge may take paternity leave for a

total of fifteen days, before or after the childbirth. (2) A Judge on paternity leave shall receive full pay. (3) Paternity leave shall be granted only twice during the entire service period. (4) A Judge who has taken paternity leave must submit the birth registration certificate of the child to the court where he/she works within three months from the date of taking leave. (5) If a Judge fails to submit such certificate within the period under sub-section (4), the period of such leave shall be deducted from other leave receivable by him/her. (6) An up-to-date record of paternity leave shall be maintained by the concerned court and information thereof shall be provided to the Judicial Council. 28. Study Leave: A Judge of a District Court who is selected for study in subjects useful and necessary for the administration of justice under a scholarship from the Government of Nepal or received by the Government of Nepal, shall receive study leave with pay. Provided that such leave shall not exceed three years. 29. Leave Sanctioning Authority: (1) The Chief Judge of a High Court may take casual leave and festival leave himself/herself by verbally informing the senior most Judge next to him/her. Sanction for other leaves must be obtained from the Chief Justice. (2) Other Judges of a High Court may take casual leave and festival leave themselves by verbally informing the Chief Judge. Sanction for other leaves must be obtained from the Chief Judge. (3) A Judge of a District Court may take casual leave and festival leave himself/herself. Sanction for other leaves must be obtained from the Chief Judge of the concerned High Court. Provided that, as far as possible, before taking such casual leave and festival leave, the Judge of the District Court shall verbally inform the Chief Judge of the concerned High Court. A Judge of a District Court having more than one District Judge may take casual leave and festival leave by verbally informing the senior most District Judge, and this shall not be an impediment. (4) When sanctioning leave for a period exceeding one month to any Judge under this section, the Chief Judge of the High Court shall consult with the Chief Justice. 30.

Accumulated Leave from Previous Service: If a person who was serving in a constitutional position or in the permanent service of the Government of Nepal or an institution wholly owned by the Government of Nepal is appointed to the post of Judge, the accumulated home leave or sick leave earned by such person while serving in such position or service shall be deemed to be accumulated as per this Act for such Judge. 31. Treatment Expenses: (1) If a Judge falls ill and undergoes treatment after diagnosis of the disease based on a physician's prescription, he/she shall receive the following expenses as treatment expenses: (a) Expenses as per the hospital bill incurred during hospitalization and treatment in the hospital, and the cost of medicines purchased as per the hospital physician's prescription. (b) Fees charged by a physician, kabiraj or vaidya for examination, and the cost of medicines purchased according to the prescription given after examination, in cases where hospitalization is not required or not possible, or after discharge from the hospital. (c) Expenses as per the bill incurred for all types of surgical operations, except plastic surgery. (d) Expenses as per the bill incurred for equipment such as spectacles, dentures, earphones etc., up to the limit prescribed by the Government of Nepal by issuing an order from time to time. (e) If treatment is undertaken in another district or abroad, leaving one's home or rented accommodation, full transportation expenses for the patient and, if an attendant is necessary, for one attendant as well, up to and from such place, and seventy-five percent of the daily allowance receivable by the Judge as food expenses. (2) Notwithstanding anything contained in sub-section (1), treatment expenses shall not be given if the expense incurred at one time is less than five hundred rupees, and the total treatment expenses a Judge receives during the entire service period shall not exceed an amount equal to twelve months' remuneration. (3) Notwithstanding anything contained in sub-sections (1) and (2), if a Judge is injured in the course of performing official duties and requires treatment domestically, or if domestic treatment is not possible and a Medical Board formed by the Government of Nepal recommends treatment abroad, the Government of Nepal shall bear the expenses incurred for treatment abroad as per the prescription and bill. (4) If a Judge wishes to take the treatment expenses

receivable under this Act as an advance, subject to sub-section (2), an advance may be given with the condition of settling accounts later; and if the amount taken as advance exceeds the amount receivable as treatment expenses upon subsequent accounting, the excess amount shall be deducted in installments from the Judge's remuneration.

Provided that if the Judge dies before the amount to be deducted is fully recovered, the remaining balance to be deducted shall be written off.

(5) If any member of the Judge's family falls ill, the Judge may receive, up to half of the maximum treatment expense amount receivable under sub-section (2), ninety percent of the treatment expenses incurred as per the bill, which shall be deducted from that maximum amount.

(6) While claiming treatment expenses under sub-section (5), a physician's prescription mentioning the diagnosis of the disease must be submitted.

(7) If any member of the Judge's family falls ill and requires treatment abroad, or requires hospitalization and surgery or treatment domestically, the Judge shall receive, from the amount receivable under sub-section (2), ninety percent of the expenses as per the hospital bill and the cost of medicines and treatment as per the hospital physician's prescription.

(8) Notwithstanding anything contained in sub-sections (5) and (7), if the Judge's living-in spouse, mother, father, mother-in-law or father-in-law is serving in a constitutional position, government service, or service of an institution owned or controlled by the government, such treatment expenses shall not be received. Explanation: For the purpose of this section, "constitutional position" means the post of the head or office bearer of a constitutional body.

(9) If, at the time of separation from service, a Judge has a remaining balance of treatment expenses receivable under sub-section (2), such remaining amount may be received in a lump sum. Provided that, if a Judge of a High Court who retires with pension has completed fifteen years of service, and a Judge of a District Court has completed twenty-five years of service, they shall receive, at the time of such separation from service, a lump sum amount calculated by adding another ten percent to the amount receivable under sub-section (2).

(10) Notwithstanding anything contained in sub-section (9), a Judge who has already received treatment expenses for service rendered to the Government of Nepal shall only receive the remaining amount after deducting the treatment expenses previously received.

(11) A Judge shall not be given treatment expenses exceeding an amount equal to one and a half months' remuneration drawn by him/her in a year, for himself/herself and family combined, except in the following circumstances:

- (a) When treatment abroad is required or domestic hospitalization is required under this section,
- (b) When treating a family member under sub-section (7).

(12) A Judge claiming treatment expenses under this section must, if ill to the extent of being unable to attend court, first apply for sick leave as long as sick leave remains.

Provided that if no sick leave remains, applying for other leave shall not be an impediment.

(13) If a Judge dies before receiving the treatment expenses receivable under this section, such treatment expenses shall be received by the person specified in sub-section (1) of section 15.

(14) Details of the treatment expenses received by a Judge under this section shall be maintained in the Judge's leave record and personal file. 32. Additional Financial Assistance: (1) In addition to the treatment expenses receivable under sub-section (1) of section 31, the Government of Nepal may provide an amount deemed reasonable as additional financial assistance to a serving Judge or his/her spouse, based on a recommendation by the Medical Board formed by the Government of Nepal for domestic or foreign treatment.

(2) When providing additional financial assistance under sub-section (1), for serious diseases such as kidney, heart and cancer, an amount up to a maximum of five hundred thousand rupees may be given as per the bill for the expenses incurred for treatment.

(3) To obtain financial assistance under this section, the Judge must have already received the treatment expenses under sub-section (1) of section 31, and must submit a recommendation of the Medical Board formed by the Government of Nepal stating that further treatment is required, along with treatment-related documents and expense bills and vouchers. 33. Provision for Acting Capacity: (1) If the post of Chief Judge of a High Court falls vacant, or if the Chief Judge is unable to perform the duties of his/her post due to ill health or any other reason, or if the Chief Judge is absent from the court due to being on leave or being out of Nepal, the Chief Justice may assign the senior most Judge of that same High Court to work as Acting Chief Judge.

(2) A Judge of a High Court working as Acting Chief Judge pursuant to sub-section (1) shall receive the same remuneration and facilities as receivable by the Chief Judge for the period he/she acts as such. 34. Joining Time: (1) A person appointed to the post of Judge must assume office and take charge within one month of appointment. Remuneration and facilities shall be receivable only from the date he/she takes charge.

(2) If a Judge fails to take charge of his/her post without reasonable cause within the period under sub-section (1), his/her post shall be deemed to have fallen vacant automatically.

(3) A Judge transferred from one court to another shall receive a maximum time of seven days for preparation. 35.

Salary during Suspension: If a Judge is suspended under the prevailing law, he/she shall receive only half of his/her salary during the period of such suspension. Provided that if the alleged charge is not proved and he/she is exonerated, he/she shall receive full salary for the suspension period, deducting any half salary already received, or if none was received, full salary. If found guilty, he/she shall not receive the remaining salary from the date of suspension. 36. Oath of Office: Before taking charge of his/her post, the Chief Judge of a High Court shall take an oath of office and secrecy in the format as per Schedule-2 before the Chief Justice, and other Judges of a High Court and Judges of a District Court shall take such oath before the Chief Judge of the concerned High Court. 37. Review of Remuneration and Facilities: The Government of Nepal shall, in consultation with the Supreme Court, review the remuneration of Judges every three years. 38. Amendment to Schedule: The Government of Nepal may, by publishing a notice in the Nepal Gazette, amend the Schedule. 39. Repeal and Saving: (1) The Act Relating to Remuneration, Facilities and Other Conditions of Service of Judges of High Courts and District Courts, 2048 is hereby repealed. (2) All actions and proceedings done under the Act Relating to Remuneration, Facilities and Other Conditions of Service of Judges of High Courts and District Courts, 2048 shall be deemed to have been done under this Act. Schedule-1 (Relating to section 3, sub-sections (1) and (2) of section 5, sub-section (3) of section 6, sub-section (1) of section 7, sub-section (5) of section 8, section 10 and section 11) Remuneration and other Facilities of Judges of High Courts and District Courts

S.No.	Type of Facility	Unit	Rate
Chief Judge of High Court	1	Remuneration	Per month Rs. 57,780.?
Judge of High Court	2	Remuneration	Per month Rs. 54,590.?
Judge of District Court	3	Remuneration	Per month Rs. 46,120.?

2 Special Allowance Per month Rs. 1,000.? 1,000.? 1,000.? 3 Housing Facility Per month Rs.